

SENATE No. 2327

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying resolve:

Resolve increasing representation of all Massachusetts residents in the state house art collection.

PETITION OF:

NAME:

Joanne M. Comerford

DISTRICT/ADDRESS:

Hampshire, Franklin and Worcester

SENATE No. 2327

By Ms. Comerford, a petition (accompanied by resolve, Senate, No. 2327) of Joanne M. Comerford that provisions be made for an investigation and study by a special commission (including members of the General Court) to review and study of the state house art collection. Tourism, Arts and Cultural Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Resolve increasing representation of all Massachusetts residents in the state house art collection.

1 ~~Resolved~~, (a) For the purposes of this section, the following words shall have the
2 following meanings:

3 "Historical artifact", an object commemorating, representing or having specific ties to a
4 significant historical event or era in the history of the commonwealth; provided, however, that
5 "historical artifact" shall not include flags under the care of the superintendent of the state house
6 under section 17A of chapter 8 of the general laws.

7 "Work of art", (i) a portrait or other memorial procured under section 19 or 19A of
8 chapter 8 of the general laws; and (ii) a painting, portrait, mural decoration, stained glass, statue,
9 bas-relief, ornament, fountain or other article or structure of a permanent character intended for
10 decoration or commemoration.

(b) There is hereby established a special commission pursuant to section 2A of chapter 4 of the General Laws to conduct a full review and study of the state house art collection and to develop recommendations for updating said art collection to achieve the following goals:

(i) to accurately and comprehensively reflect and represent the history of the commonwealth;

(ii) to reflect and represent the diversity of the commonwealth's population throughout history and in the twenty-first century, including by increasing the number of historical artifacts and works of art which both represent and were made by demographic groups who were previously excluded from or negatively or inaccurately depicted in the state house art collection;

(iii) to honor important contributions to the commonwealth made by individuals and groups throughout history; and

(iv) to celebrate and showcase the beauty and diversity of the commonwealth's geography, history and communities.

(b) The commission shall consist of 1 member who shall be a member of the senate who shall be appointed by the senate president, who shall serve as co-chair; 1 member who shall be appointed by the minority leader of the senate; 1 member who shall be a member of the house of representatives who shall be appointed by the speaker of the house of representatives, who shall serve as co-chair; 1 member who shall be appointed by the minority leader of the house of representatives; the secretary of the commonwealth, or a designee; the 7 members of the art commission for the state house as established in section 20 of chapter 6 of the general laws; the state house curator; 1 member appointed by the Museum of Fine Arts Boston; 1 member appointed by the Institute of Contemporary Art; 1 member appointed by the Massachusetts

cultural council; 1 member appointed by Mass Humanities; 1 member appointed by the commission on the status of African Americans; 1 member appointed by the commission on the status of Latinos and Latinas; 1 member appointed by the commission on the status of Asian Americans and Pacific Islanders; 1 member appointed by the commission on Indian affairs; 1 member appointed by the commission on the status of women; 1 member appointed by the commission on lesbian, gay, bisexual, transgender, queer and questioning youth; and 1 member appointed by the Arc of Massachusetts. Members of the commission may receive reimbursement for the reasonable expenses incurred in carrying out their responsibilities as members of the commission.

(c) The commission shall review the state house art collection and study ways to update said collection to meet the goals stated in subsection (b) of this act, and shall prepare a report that shall include, but not be limited to, an inventory of the state house art collection, including historical artifacts and works of art on display and in storage, and recommendations for:

(i) whether and how to remove or replace or relocate historical artifacts and works of art from the state house art collection which offensively or inaccurately represent demographic groups, and which historical artifacts and works of art should be removed or replaced or relocated;

(ii) how to procure and site new acquisitions within the state house art collection to ensure diversity of subjects and artists and to ensure that new acquisitions are showcased throughout the state house and are not relegated to one area;

(iii) a list of historical artifacts and works of art that the art commission for the state house, as established in section 20 of chapter 6 of the general laws, should look to acquire for the state house art collection;

(iv) a list of artists whom the art commission for the state house, as established in section 20 of chapter 6 of the general laws, should commission for new works of art for the state house art collection;

(v) how to increase public participation in and understanding of the state house art collection, including by updating how both new and existing historical artifacts and works of art are contextualized in the state house, such as through the use of new plaques, signage, written or oral narratives, tours and live presentations;

(vi) creating new or amending existing processes for procurements to ensure equitable public input;

(vii) a plan for implementation, including a timeline; and

(viii) anticipated legislative and budgetary needs to implement these recommendations.

(d) Not more than 18 months after the effective date of this act, the commission shall file a report on the results of its review and study together with its findings and recommendations, including any drafts of legislation necessary to carry out those recommendations, with the clerks of the senate and house of representatives, the senate and house committees on ways and means, the joint committee on tourism, arts and cultural development and the governor's office. The report shall be posted on the website of the secretary of the commonwealth.